formula, and "shall pay" qualifying insurers—falls comfortably within the class of money-mandating statutes that permit recovery of money damages in the Court of Federal Claims.

Bolstering our finding is § 1342's focus on compensating insurers for past conduct. In assessing Tucker Act actions, this Court has distinguished statutes that "attempt to compensate a particular class of persons for past injuries or labors" from laws that "subsidize future state expenditures." *Bowen*, 487 U. S., at 906, n. 42. (The first group permits Tucker Act suits; the second does not.) The Risk Corridors statute sits securely in the first category: It uses a backwards-looking formula to compensate insurers for losses incurred in providing healthcare coverage for the prior year.[13]

2

Nor is there a separate remedial scheme supplanting the Court of Federal Claims' power to adjudicate petitioners' claims.

True, the Tucker Act "is displaced" when "a law assertedly imposing monetary liability on the United States contains its own judicial remedies." *Bormes*, 568 U. S., at 12. A plaintiff in that instance cannot rely on our "fair interpretation"

[13] Despite agreeing that "[t]he Court is correct" on the case law, the dissent proposes supplemental briefing and re-argument. *Post,* at 331, 335. We underscore, however, that all Members of this Court agree that today's cases do not break new doctrinal ground.

The Federal Circuit, moreover, concurs in our conclusion. 892 F. 3d 1311, 1320, n. 2 (2018) (holding that § 1342 "is money-mandating for [Tucker Act] purposes" (citing *Greenlee County* v. *United States*, 487 F. 3d 871, 877 (CA Fed. 2007))). It also agrees with our analysis broadly, having held that "shall pay" language "generally makes a statute money-mandating" under the Tucker Act. *Id.*, at 877 (internal quotation marks omitted). Conversely, the Court of Appeals has concluded that a statute is not money mandating where the Government enjoys "complete discretion" in determining whether (and whom) to pay. See, *e. g., Doe* v. *United States*, 463 F. 3d 1314, 1324 (2006) (noting that the statutory term, "may," creates a rebuttable presumption that the "statute creates discretion").

test, and instead must stick to the money-mandating statute's "*own* text" to "determine whether the damages liability Congress crafted extends to the Federal Government." *Id.*, at 15–16. Examples include the Fair Credit Reporting Act, 84 Stat. 1127, and the Agricultural Marketing Agreement Act of 1937, 50 Stat. 246. The former superseded the Tucker Act by creating a cause of action, imposing a statute of limitations, and providing subject-matter jurisdiction in federal district courts. See 15 U. S. C. §§ 1681n, 1681*o*, 1681p; *Bormes*, 568 U. S., at 15. And the latter did so by allowing aggrieved parties to petition the Secretary of Agriculture and by paving a path for judicial review. See 7 U. S. C. § 608c(15); *Horne* v. *Department of Agriculture*, 569 U. S. 513, 527 (2013).

Unlike those statutes, however, the Affordable Care Act did not establish a comparable remedial scheme. Nor has the Government identified one. So this exception to the Tucker Act is no barrier here.

Neither does the Administrative Procedure Act bar petitioners' Tucker Act suit. To be sure, in *Bowen*, this Court held in the Medicaid context that a State properly sued the HHS Secretary under the Administrative Procedure Act (not the Tucker Act) in district court (not the Court of Federal Claims) for failure to make statutorily required payments. See 487 U. S., at 882–887, 901–905.

But *Bowen* is distinguishable on several scores. First, the relief requested there differed materially from what petitioners pursue here. In *Bowen*, the State did not seek money damages, but instead sued for prospective declaratory and injunctive relief to clarify the extent of the Government's ongoing obligations under the Medicaid program. Unlike § 1342, which "provide[s] compensation for specific instances of past injuries or labors," *id.*, at 901, n. 31, the pertinent Medicaid provision was a "grant-in-aid program," which "direct[ed] the Secretary . . . to subsidize future state expenditures," *id.*, at 906, n. 42. Thus, the suit in *Bowen* "was not merely for past due sums, but for an injunction to correct the method of calculating payments going forward." *Great-West Life & Annuity Ins. Co.* v. *Knudson*, 534 U. S. 204, 212 (2002). And because the Court of Federal Claims "does not have the general equitable powers of a district court to grant prospective relief," 487 U. S., at 905, the Court reasoned that *Bowen* belonged in district court.

Second, the parties' relationship in *Bowen* also differs from the one implicated here. The State had employed the Administrative Procedure Act in *Bowen* because of the litigants' "complex ongoing relationship," which made it important that a district court adjudicate future disputes. *Ibid.*; see also *id.*, at 900, n. 31. The Court added that the Administrative Procedure Act "is tailored" to "[m]anaging the relationships between States and the Federal Government that occur over time and that involve constantly shifting balance sheets," while the Tucker Act is suited to "remedy-[ing] particular categories of past injuries or labors for which various federal statutes provide compensation." *Id.*, at 904–905, n. 39.

These observations confirm that petitioners properly sued the Government in the Court of Federal Claims. Petitioners' prayer for relief under the Risk Corridors statute looks nothing like the requested redress in *Bowen*. Petitioners do not ask for prospective, nonmonetary relief to clarify future obligations; they seek specific sums already calculated, past due, and designed to compensate for completed labors. The Risk Corridors statute and Tucker Act allow them that remedy. And because the Risk Corridors program expired years ago, this litigation presents no special concern about managing a complex ongoing relationship or tracking ever-changing accounting sheets. Petitioners' suit thus lies in the Tucker Act's heartland.[14]

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[14] The dissent concedes that there may "be some sharply defined categories of claims that may be properly asserted" through the Tucker Act "simply as a matter of precedent." *Post*, at 333, and nn. 3, 4 (citing takings,

V

In establishing the temporary Risk Corridors program, Congress created a rare money-mandating obligation requiring the Federal Government to make payments under § 1342's formula. And by failing to appropriate enough sums for payments already owed, Congress did simply that and no more: The appropriations bills neither repealed nor discharged § 1342's unique obligation. Lacking other statutory paths to relief, and absent a *Bowen* barrier, petitioners may seek to collect payment through a damages action in the Court of Federal Claims.[15]

These holdings reflect a principle as old as the Nation itself: The Government should honor its obligations. Soon after ratification, Alexander Hamilton stressed this insight as a cornerstone of fiscal policy. "States," he wrote, "who observe their engagements . . . are respected and trusted: while the reverse is the fate of those . . . who pursue an opposite conduct." Report Relative to a Provision for the Support of Public Credit (Jan. 9, 1790), in 6 Papers of Alexander Hamilton 68 (H. Syrett & J. Cooke eds. 1962). Centuries later, this Court's case law still concurs.

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breach-of-contract, failure-to-pay-compensation, and breach-of-fiduciary-duty claims as examples). Petitioners' claim—breach of an unambiguous statutory promise to pay for services rendered to the Government—fits easily within those precedents. The only differences the dissent seems to assert here are that the dollar figure is higher and that petitioners do not deserve a "bailout" for their "bet" that the Federal Government would comply with federal law. *Post,* at 330, 334; but cf., *e. g.,* 79 Fed. Reg. 30260 (assuring insurers with "concerns that risk corridors collections may not be sufficient to fully fund risk corridors payments" that the Government would still pay). Our analysis in Tucker Act cases has never revolved on such results-oriented reasoning.

[15] Having found that the Risk Corridors statute is a money-mandating provision for which a Tucker Act suit lies, we need not resolve petitioners' alternative arguments for recovery based on an implied-in-fact contract theory or under the Takings Clause.

The judgments of the Court of Appeals are reversed, and the cases are remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE ALITO, dissenting.

Twice this Term, we have made the point that we have basically gotten out of the business of recognizing private rights of action not expressly created by Congress. Just a month ago in *Comcast Corp.* v. *National Assn. of African American-Owned Media*, 589 U. S. 327, 334 (2020), after noting a 1975 decision[1] inferring a private right of action under 42 U. S. C. § 1981, we wrote the following about that decision:

> "That was during a period when the Court often 'assumed it to be a proper judicial function to provide such remedies as are necessary to make effective a statute's purpose.' *Ziglar* v. *Abbasi*, 582 U. S. 120, 132 (2017) (internal quotation marks omitted). With the passage of time, of course, we have come to appreciate that, '[l]ike substantive federal law itself, private rights of action to enforce federal law must be created by Congress' and '[r]aising up causes of action where a statute has not created them may be a proper function for common-law courts, but not for federal tribunals.' *Alexander* v. *Sandoval*, 532 U. S. 275, 286–287 (2001) (internal quotation marks omitted)."

A month before that, in *Hernández* v. *Mesa*, 589 U. S. 93 (2020), we made the same point and accordingly refused to infer a cause of action under the Fourth Amendment for an allegedly unjustified cross-border shooting. We reasoned that "a lawmaking body that enacts a provision that creates a right . . . may not wish to pursue the provision's purpose

[1] *Johnson* v. *Railway Express Agency, Inc.*, 421 U. S. 454, 459 (1975).

to the extent of authorizing private suits for damages." *Id.*, at 100. Other recent opinions are similar. See, *e. g.*, *Ziglar* v. *Abbasi*, 582 U. S. 120, 132–136, 145 (2017); *Jesner* v. *Arab Bank*, *PLC*, 584 U. S. 241, 264–265 (2018); *id.*, at 274 (THOMAS, J., concurring); *id.*, at 274–275, 276–277 (ALITO, J., concurring in part and concurring in judgment); *id.*, at 280–281 (GORSUCH, J., concurring in part and concurring in judgment).

Today, however, the Court infers a private right of action that has the effect of providing a massive bailout for insurance companies that took a calculated risk and lost. These companies chose to participate in an Affordable Care Act program that they thought would be profitable. I assume for the sake of argument that the Court is correct in holding that § 1342 of the Affordable Care Act created an obligation that was not rescinded by subsequent appropriations riders. Thus, for present purposes, I do not dispute the thrust of the analysis in Parts I–III of the opinion of the Court.

I

My disagreement concerns the critical question that the Court decides in the remainder of its opinion. In order for petitioners to recover, federal law must provide a right of action for damages. The Tucker Act, 28 U. S. C. § 1491, under which petitioners brought suit, provides a waiver of sovereign immunity and a grant of federal-court jurisdiction, but it does not create any right of action. See, *e. g.*, *United States* v. *Navajo Nation*, 556 U. S. 287, 290 (2009). Nor does any other federal statute expressly create such a right of action. The Court, however, holds that § 1342 of the Affordable Care Act does so by implication. Because § 1342 says that the United States "shall pay" for the companies' losses, 42 U. S. C. § 18062(b)(1), the Court finds it is proper to infer a private right of action to recover for these losses.

This is an important step. Under the Court's decision, billions of taxpayer dollars will be turned over to insurance companies that bet unsuccessfully on the success of the program in question. This money will have to be paid even though Congress has pointedly declined to appropriate money for that purpose.

Not only will today's decision have a massive immediate impact, its potential consequences go much further. The Court characterizes provisions like § 1342 as "rare," *ante*, at 324, but the phrase the "Secretary shall pay"—the language that the Court construes as creating a cause of action—appears in many other federal statutes.

II

The Court concludes that it is proper for us to recognize a right of action to collect damages from the United States under any statute that " 'can fairly be interpreted as mandating compensation.' " *Ante*, at 322. The Court is correct that prior cases have set out this test, but as the Court acknowledges, we have "[r]arely" had to determine whether it was met. See *ante*, at 324. And we have certainly never inferred such a right in a case even remotely like these.

Nor has any prior case provided a reasoned explanation of the basis for the test. In *United States* v. *Testan*, 424 U. S. 392 (1976), the Court simply lifted the language in question from an opinion of the old United States Court of Claims before holding that the test was not met in the case at hand. *Id.*, at 400–402 (citing *Eastport S. S. Corp.* v. *United States*, 178 Ct. Cl. 599, 607, 372 F. 2d 1002, 1009 (1967)). The Court of Claims opinion, in turn, did not explain the origin or basis for this test. See *id.*, at 607, 372 F. 2d, at 1009. And not only have later cases parroted this language, they have expanded it. In *United States* v. *White Mountain Apache Tribe*, 537 U. S. 465, 473 (2003) (emphasis added), the Court wrote that "[i]t is enough . . . that a statute . . . be *reasonably amenable* to the reading that it mandates a right of recovery in damages."

Despite the uncertain foundation of this test, our post-*Testan* decisions have simply taken it as a given. I would not continue that practice. Before holding that this test requires the payment of billions of dollars that Congress has pointedly refused to appropriate, we ought to be sure that there is a reasonable basis for this test. And that is questionable.[2]

III

There is obvious tension between what the Court now calls the "money-mandating" test, *ante*, at 324–325, and our recent decisions regarding the recognition of private rights of action. Take the statute at issue in our *Comcast* decision. That provision, 42 U. S. C. § 1981(a), states:

> "All persons within the jurisdiction of the United States *shall have the same right* in every State and Territory to make and enforce contracts, to sue, be parties, give evidence, and to the full and equal benefit of all laws and proceedings for the security of persons and property as is enjoyed by white citizens." (Emphasis added.)

Our opinion in *Comcast* suggested that we might not find this "shall have" language sufficient to justify the recognition of a damages claim if the question came before us today as a matter of first impression. See 589 U. S., at 333–334. But if that is so, how can we reach a different conclusion with respect to the "shall pay" language in § 1342 of the Affordable Care Act? Similarly, the Fourth Amendment provides that "[t]he right of the people to be secure . . . against unreasonable . . . seizures . . . *shall not be violated*." (Emphasis added.) Can this rights-mandating language be distinguished from what the Court describes as the "money-mandating" language found in § 1342? See *Hernández*, 589 U. S., at 103, 113–114 (rejecting extension of *Bivens* v. *Six*

[2] Moreover, there is at least an argument that the Court's application of the test here is itself in conflict with *United States* v. *Testan*, 424 U. S. 392, 400 (1976), which also directed that the "grant of a right of action must be made with specificity."

Unknown Fed. Narcotics Agents, 403 U. S. 388 (1971), to Fourth Amendment claim arising in a "new context").

One might argue that the assumptions underlying the enactment of the Tucker Act justify our exercising more leeway in inferring rights of action that may be asserted under that Act. When the Tucker Act was enacted in 1887, Congress undoubtedly assumed that the federal courts would "'[r]ais[e] up causes of action,'" *Alexander* v. *Sandoval*, 532 U. S. 275, 287 (2001), in the manner of a common-law court. At that time, federal courts often applied general common law. But since *Erie R. Co.* v. *Tompkins*, 304 U. S. 64 (1938), the federal courts have lacked this power. Yet the "money-mandating" test that the Court applies today, *ante*, at 324–325, and n. 13, bears a disquieting resemblance to the sort of test that a common-law court might use in deciding whether to create a new cause of action. To be sure, *some* of the claims asserted under the Tucker Act, most notably contract claims, are governed by the new federal common law that applies in limited areas involving "'uniquely federal interests.'" *Boyle* v. *United Technologies Corp.*, 487 U. S. 500, 504 (1988); see also *Testan*, 424 U. S., at 400. And the recognition of an implied right to recover on such claims is thus easy to reconcile with the post-*Erie* regime. There may also be some sharply defined categories of claims[3] that may be properly asserted simply as a matter of precedent.[4] But

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[3] Takings claims are an example. During the period when federal courts applied general common law, such claims were brought under the Tucker Act, apparently on the theory of implied contract. See, *e. g.*, *Hurley* v. *Kincaid*, 285 U. S. 95, 104 (1932); *United States* v. *Lynah*, 188 U. S. 445, 458–459 (1903). But the Court rejected the argument that a takings claim could be based "exclusively on the Constitution, without reference to any statute of the United States, or to any contract arising under an act of Congress." *Hooe* v. *United States*, 218 U. S. 322, 335 (1910).

[4] Compare *Testan*, 424 U. S., at 400 (suggesting that private remedies might be available for contract claims); *United States* v. *Mitchell*, 463 U. S. 206, 224–228 (1983) (relying on "fiduciary relationship . . . [that] arises when the Government assumes . . . control over forests and property be-

the exercise of common-law power in cases like the ones now before us is a different matter.

An argument based on Congress's assumptions in enacting the Tucker Act would present a question that is similar to one we have confronted under the Alien Tort Statute (ATS), a provision like the Tucker Act that grants federal jurisdiction but does not itself create any right of action. *Sosa* v. *Alvarez-Machain*, 542 U. S. 692, 713 (2004). Our cases have assumed that the ATS was enacted on the assumption that it would provide a jurisdictional basis for plaintiffs to assert common-law claims, see *id.*, at 724, but our recent cases have held that even there, we should exercise "great caution" before recognizing any new claims not created by statute, *id.*, at 728. See also *Jesner*, 584 U. S., at 264–265; *Kiobel* v. *Royal Dutch Petroleum Co.*, 569 U. S. 108, 116–117 (2013). There is every reason to believe that a similar caution should guide cases under the Tucker Act—especially when billions of dollars of federal funds are at stake. The money-mandating test that the Court applies here is in stark tension with this precedent.

Despite its importance, the legitimacy of inferring a right of action under § 1342 has not received much attention in these cases. The Federal Circuit addressed the question in passing in a footnote, 892 F. 3d 1311, 1320, n. 2 (2018), and in this Court, the briefing and argument focused primarily on other issues. No attempt was made to reconcile our approach to inferring rights of action in Tucker Act cases with our broader jurisprudence.

I am unwilling to endorse the Court's holding in these cases without understanding how the "money-mandating"

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longing to Indians" to create cause of action); *Bell* v. *United States*, 366 U. S. 393 (1961) (adjudicating suit brought by former service members for compensation while they were prisoners of war), with *Bowen* v. *Massachusetts*, 487 U. S. 879, 905, n. 42 (1988) (rejecting cause of action cognizable under the Tucker Act based on "shall pay" requirement under the Medicaid Act, 42 U. S. C. § 1396b(a)).

test on which the Court relies fits into our general approach to the recognition of implied rights of action.[5] Because the briefing and argument that we have received have not fully addressed this important question, I would request supplemental briefing and set the cases for re-argument next Term.

For these reasons, I respectfully dissent.

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[5] The Court claims that the logic of this opinion "suggests that a federal statute could never provide a cause of action for damages absent magic words explicitly inviting suit." *Ante*, at 323, n. 12. But all I suggest is that the Court request briefing on the question of inferring causes of action to recover damages under the Tucker Act. The Court makes no effort to explain how the test it applies here can be reconciled with our general approach to inferring private rights of action but is apparently content to allow that inconsistency to remain.

The Court is flatly wrong in saying that the test in *Alexander* v. *Sandoval*, 532 U. S. 275, 286 (2001)—whether a statute "displays an intent to create not just a private right but also a private remedy"—is "precisely" the same as its "money-mandating inquiry." *Ante*, at 323, n. 12. In fact, the "money-mandating inquiry" is precisely contrary to the statement in *Sandoval*. *Sandoval* said unequivocally that it is not enough if a statute merely "displays an intent to create . . . a private right," 532 U. S., at 286, but according to the Court, it is sufficient for a statute to manifest only an intent to create a right to receive money.

The Court asserts that there is no real difference between the billion-dollar private right of action that the Court now creates on behalf of sophisticated economic actors and our prior precedents, *ante*, at 327, n. 14, but the Court does not identify analogous precedents—perhaps because there are none to cite.

NEW YORK STATE RIFLE & PISTOL ASSOCIATION, INC., ET AL. *v.* CITY OF NEW YORK, NEW YORK, ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

No. 18–280. Argued December 2, 2019—Decided April 27, 2020

Petitioners sought to enjoin enforcement of a New York City rule that restricted the transport of firearms, claiming that the rule violated the Second Amendment. The District Court and the Court of Appeals rejected petitioners' claim. After the Court granted certiorari, the City amended its rule to allow the transport of firearms to a second home or shooting range outside the City, precisely the relief requested by petitioners.

Held: Petitioners' claim for declaratory and injunctive relief with respect to the City's old rule is moot. Because mootness is attributable to a change in the challenged legal framework, the Court vacates the decision below and remands for further proceedings. The courts below may consider on remand whether petitioners may add a claim for damages in this lawsuit with respect to the City's old rule.

883 F. 3d 45, vacated and remanded.

Paul D. Clement argued the cause for petitioners. With him on the briefs were *Erin E. Murphy* and *Matthew D. Rowen.*

Principal Deputy Solicitor General Wall argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Francisco, Assistant Attorney General Hunt, Deputy Assistant Attorney General Mooppan, Vivek Suri,* and *Michael S. Raab.*

Richard Dearing argued the cause for respondents. With him on the brief were *Zachary W. Carter, Claude S. Platton, Elina Druker, Ingrid R. Gustafson, Susan Paulson, Jeffrey L. Fisher, Anton Metlitsky, Jennifer B. Sokoler,* and *Bradley N. Garcia.**

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*Briefs of *amici curiae* urging reversal were filed for the State of Louisiana et al. by *Jeff Landry,* Attorney General of Louisiana, *Elizabeth B. Murrill,* Solicitor General, and *Michelle Ward Ghetti,* Deputy Solicitor

Per Curiam.

In the District Court, petitioners challenged a New York City rule regarding the transport of firearms. Petitioners claimed that the rule violated the Second Amendment. Petitioners sought declaratory and injunctive relief against

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General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin Clarkson* of Alaska, *Mark Brnovich* of Arizona, *Leslie Rutledge* of Arkansas, *Ashley Moody* of Florida, *Chris Carr* of Georgia, *Lawrence G. Wasden* of Idaho, *Curtis T. Hill, Jr.*, of Indiana, *Derek Schmidt* of Kansas, *Eric S. Schmitt* of Missouri, *Tim Fox* of Montana, *Doug Peterson* of Nebraska, *Wayne Stenehjem* of North Dakota, *Dave Yost* of Ohio, *Mike Hunter* of Oklahoma, *Alan Wilson* of South Carolina, *Jason Ravnsborg* of South Dakota, *Herbert H. Slatery III* of Tennessee, *Ken Paxton* of Texas, *Sean D. Reyes* of Utah, and *Patrick Morrisey* of West Virginia; for Academics for the Second Amendment by *Joseph Edward Olson* and *David T. Hardy*; for the American Civil Rights Union by *Kenneth A. Klukowski*; for the California Rifle and Pistol Association, Inc., et al. by *C. D. Michel*, *Sean A. Brady*, and *Anna M. Barvir*; for the Cato Institute by *Ilya Shapiro*; for Commonwealth Second Amendment, Inc., by *Alan Gura*; for the Firearms Policy Foundation et al. by *Erik S. Jaffe* and *Gene C. Schaerr*; for Judicial Watch, Inc., et al. by *Chris Fedeli*; for the Liberal Gun Club by *David D. Jensen* and *Daniel L. Schmutter*; for the Madison Society Foundation, Inc., by *Donald E. J. Kilmer, Jr.*; for the Mountain States Legal Foundation by *Cristen Wohlgemuth*; for the National African American Gun Association, Inc., by *Stephen P. Halbrook*; for the National Rifle Association of America, Inc., by *David H. Thompson*, *Howard C. Nielson, Jr.*, *Peter A. Patterson*, and *John D. Ohlendorf*; for the National Sheriffs' Association et al. by *Dan M. Peterson*; for Pink Pistols by *Brian Koukoutchos*; for Professors of Second Amendment Law et al. by *David B. Kopel* and *Joseph G. S. Greenlee*; for Rep. Bradley Byrne et al. by *E. Travis Ramey* and *William Grayson Lambert*; for Robert Leider by *William S. Consovoy* and *J. Michael Connolly*; and for George K. Young by *Stephen D. Stamboulieh* and *Alan Alexander Beck*.

Briefs of *amici curiae* urging affirmance were filed for the State of New York et al. by *Letitia James*, Attorney General of New York, *Barbara D. Underwood*, Solicitor General, *Anisha S. Dasgupta*, Deputy Solicitor General, and *Andrew W. Amend*, Assistant Deputy Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *William Tong* of Connecticut, *Karl A. Racine* of the District of Columbia, *Kwame Raoul* of Illinois, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Gurbir S. Grewal* of New Jersey, enforcement of the rule insofar as the rule prevented their transport of firearms to a second home or shooting range outside of the city. The District Court and the Court of Appeals rejected petitioners' claim. See 883 F. 3d 45 (CA2 2018). We granted certiorari. 586 U. S. 1126 (2019). After we granted certiorari, the State of New York amended its firearm licensing statute, and the City amended the rule so that petitioners may now transport firearms to a second home or shooting range outside of the city, which is the precise relief that petitioners requested in the prayer for relief

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Ellen F. Rosenblum of Oregon, *Josh Shapiro* of Pennsylvania, *Peter F. Neronha* of Rhode Island, *Thomas J. Donovan, Jr.*, of Vermont, and *Mark R. Herring* of Virginia; for the Citizens Crime Commission of New York City by *Harry Sandick*; for the National Education Association by *Alice O'Brien*, *Jason Walta*, and *Emma Leheny*; for the National League of Cities et al. by *Lawrence Rosenthal* and *Lisa Soronen*; and for 139 Members of the United States House of Representatives by *Avi Weitzman*, *Akiva Shapiro*, and *Lee R. Crain*.

Briefs of *amici curiae* were filed for Americans Against Gun Violence by *Fred J. Hiestand*; for the Becket Fund for Religious Liberty by *Luke W. Goodrich* and *Joseph C. Davis*; for Black Guns Matter by *J. Steven Foley*; for Brady et al. by *Paul R. Q. Wolfson* and *Jonathan E. Lowy*; for the Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for Constitutional Law Professors by *Vincent Levy*; for Corpus Linguistics Professors et al. by *Brian R. Matsui* and *Jamie A. Levitt*; for the Everytown for Gun Safety Support Fund by *Deepak Gupta*, *Jonathan E. Taylor*, *Eric A. Tirschwell*, and *William J. Taylor, Jr.*; for Federal Courts Scholars by *Michael B. Kimberly*, *Paul W. Hughes*, and *Adam M. Samaha*, *pro se*; for the Giffords Law Center to Prevent Gun Violence by *Benjamin C. Mizer*, *Amanda K. Rice*, and *J. Adam Skaggs*; for Gun Owners of America, Inc., et al. by *Robert J. Olson*, *William J. Olson*, *Jeremiah L. Morgan*, *Herbert W. Titus*, *Joseph W. Miller*, and *John I. Harris III*; for the March for Our Lives Action Fund by *Ira M. Feinberg* and *Kirti Datla*; for Public Health Researchers et al. by *Jeffrey T. Green*; for Second Amendment Law Professors by *Donald B. Verrilli, Jr.*, and *Justin P. Raphael*; for William J. Bratton by *Roberto J. Gonzalez*; for Patrick J. Charles by *John M. Grenfell*, *Thomas V. Loran III*, and *Francine T. Radford*; for Neal Goldfarb by *Mr. Goldfarb*, *pro se*; and for Sen. Sheldon Whitehouse et al. by *Mr. Whitehouse*, *pro se*.

in their complaint. App. 48. Petitioners' claim for declaratory and injunctive relief with respect to the City's old rule is therefore moot. Petitioners now argue, however, that the new rule may still infringe their rights. In particular, petitioners claim that they may not be allowed to stop for coffee, gas, food, or restroom breaks on the way to their second homes or shooting ranges outside of the city. The City responds that those routine stops are entirely permissible under the new rule. We do not here decide that dispute about the new rule; as we stated in *Lewis* v. *Continental Bank Corp.*, 494 U. S. 472, 482–483 (1990):

> "Our ordinary practice in disposing of a case that has become moot on appeal is to vacate the judgment with directions to dismiss. See, *e. g.*, *Deakins* v. *Monaghan*, 484 U. S., at 204; *United States* v. *Munsingwear, Inc.*, 340 U. S. 36, 39–40 (1950). However, in instances where the mootness is attributable to a change in the legal framework governing the case, and where the plaintiff may have some residual claim under the new framework that was understandably not asserted previously, our practice is to vacate the judgment and remand for further proceedings in which the parties may, if necessary, amend their pleadings or develop the record more fully. See *Diffenderfer* v. *Central Baptist Church of Miami, Inc.*, 404 U. S. 412, 415 (1972)."

Petitioners also argue that, even though they have not previously asked for damages with respect to the City's old rule, they still could do so in this lawsuit. Petitioners did not seek damages in their complaint; indeed, the possibility of a damages claim was not raised until well into the litigation in this Court. The City argues that it is too late for petitioners to now add a claim for damages. On remand, the Court of Appeals and the District Court may consider whether petitioners may still add a claim for damages in this lawsuit with respect to New York City's old rule. The judgment of the

Court of Appeals is vacated, and the case is remanded for such proceedings as are appropriate.

It is so ordered.

JUSTICE KAVANAUGH, concurring.

I agree with the *per curiam* opinion's resolution of the procedural issues before us—namely, that petitioners' claim for injunctive relief against New York City's old rule is moot and that petitioners' new claims should be addressed as appropriate in the first instance by the Court of Appeals and the District Court on remand.

I also agree with JUSTICE ALITO's general analysis of *Heller* and *McDonald*. *Post,* at 364; see *District of Columbia* v. *Heller*, 554 U. S. 570 (2008); *McDonald* v. *Chicago*, 561 U. S. 742 (2010); *Heller* v. *District of Columbia*, 670 F. 3d 1244, 1269 (CADC 2011) (Kavanaugh, J., dissenting). And I share JUSTICE ALITO's concern that some federal and state courts may not be properly applying *Heller* and *McDonald*. The Court should address that issue soon, perhaps in one of the several Second Amendment cases with petitions for certiorari now pending before the Court.

JUSTICE ALITO, with whom JUSTICE GORSUCH joins, and with whom JUSTICE THOMAS joins except for Part IV–B, dissenting.

By incorrectly dismissing this case as moot, the Court permits our docket to be manipulated in a way that should not be countenanced. Twelve years ago in *District of Columbia* v. *Heller*, 554 U. S. 570 (2008), we held that the Second Amendment protects the right of ordinary Americans to keep and bear arms. Two years later, our decision in *McDonald* v. *Chicago*, 561 U. S. 742 (2010), established that this right is fully applicable to the States. Since then, the lower courts have decided numerous cases involving Second Amendment challenges to a variety of federal, state, and local laws. Most have failed. We have been asked to review many of these decisions, but until this case, we denied all such requests.

On January 22, 2019, we granted review to consider the constitutionality of a New York City ordinance that burdened the right recognized in *Heller*. Among other things, the ordinance prohibited law-abiding New Yorkers with a license to keep a handgun in the home (a "premises license") from taking that weapon to a firing range outside the City. Instead, premises licensees wishing to gain or maintain the ability to use their weapons safely were limited to the seven firing ranges in the City, all but one of which were largely restricted to members and their guests.

In the District Court and the Court of Appeals, the City vigorously and successfully defended the constitutionality of its ordinance, and the law was upheld based on what we are told is the framework for reviewing Second Amendment claims that has been uniformly adopted by the Courts of Appeals.[1] One might have thought that the City, having convinced the lower courts that its law was consistent with *Heller*, would have been willing to defend its victory in this Court. But once we granted certiorari, both the City and the State of New York sprang into action to prevent us from deciding this case. Although the City had previously insisted that its ordinance served important public safety purposes, our grant of review apparently led to an epiphany of sorts, and the City quickly changed its ordinance. And for good measure the State enacted a law making the old New York City ordinance illegal.

Thereafter, the City and *amici* supporting its position strove to have this case thrown out without briefing or argument. The City moved for dismissal "as soon as is reasonably practicable" on the ground that it had "no legal reason to file a brief." Suggestion of Mootness 1. When we refused to jettison the case at that early stage, the City submit-

[1] See Brief for Second Amendment Law Professors et al. as *Amici Curiae* 8–9.

ted a brief but "stress[ed] that [its] true position [was] that it ha[d] no view at all regarding the constitutional questions presented" and that it was "offer[ing] a defense of the . . . former rul[e] in the spirit of something a Court-appointed *amicus curiae* might do." Brief for Respondents 2.

A prominent brief supporting the City went further. Five United States Senators, four of whom are members of the bar of this Court, filed a brief insisting that the case be dismissed. If the Court did not do so, they intimated, the public would realize that the Court is "motivated mainly by politics, rather than by adherence to the law," and the Court would face the possibility of legislative reprisal. Brief for Sen. Sheldon Whitehouse et al. as *Amici Curiae* 2–3, 18 (internal quotation marks omitted).

Regrettably, the Court now dismisses the case as moot. If the Court were right on the law, I would of course approve that disposition. Under the Constitution, our authority is limited to deciding actual cases or controversies, and if this were no longer a live controversy—that is, if it were now moot—we would be compelled to dismiss. But if a case is on our docket and we have jurisdiction, we have an obligation to decide it. As Chief Justice Marshall wrote for the Court in *Cohens* v. *Virginia*, 6 Wheat. 264, 404 (1821), "[w]e have no more right to decline the exercise of jurisdiction which is given, than to usurp that which is not given."

Thus, in this case, we must apply the well-established standards for determining whether a case is moot, and under those standards, we still have a live case before us. It is certainly true that the new City ordinance and the new State law give petitioners *most of* what they sought, but that is not the test for mootness. Instead, "a case 'becomes moot only when it is *impossible* for a court to grant *any effectual relief whatever* to the prevailing party.'" *Chafin* v. *Chafin*, 568 U. S. 165, 172 (2013) (emphasis added). "'As long as the parties have a concrete interest, *however small*, in the out-come of the litigation, the case is not moot.'" *Ibid.* (emphasis added).

Respondents have failed to meet this "heavy burden." *Adarand Constructors, Inc.* v. *Slater*, 528 U. S. 216, 222 (2000) (*per curiam*) (internal quotation marks omitted). This is so for two reasons. First, the changes in City and State law do not provide petitioners with all the injunctive relief they sought. Second, if we reversed on the merits, the District Court on remand could award damages to remedy the constitutional violation that petitioners suffered.

I

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New York State has strict laws governing the possession of firearms. With only a few exceptions, possession without a license is punishable by imprisonment and a fine. N. Y. Penal Law Ann. §§ 60.01(3), 70.15, 265.01–265.04, 265.20(a)(3) (West Cum. Supp. 2020). Local authorities administer the licensing program, § 400.00(3)(a), and in New York City, this is done by the New York City Police Department's (NYPD's) License Division. See 38 N. Y. C. R. R. § 5–01 *et seq.* (2020); N. Y. Penal Law Ann. § 265.00(10); N. Y. C. Admin. Code § 10–131 (2020).

New York State law contemplates two primary forms of handgun license—a premises license, which allows the licensee to keep the registered handgun at a home or business, and a carry license, which permits the licensee to carry a concealed handgun outside the home. N. Y. Penal Law Ann. §§ 400.00(2)(a), (b), (f). In this case, only premises licenses are at issue.

State law imposes an exacting standard for obtaining a premises license, and the NYPD License Division subjects applicants to rigorous vetting. Licenses may be issued only if, among other things, an applicant is "of good moral character" and "no good cause exists for the denial of the license." §§ 400.00(1)(b), (n); see also App. 95–109 ("Instructions to Handgun License Applicants" (capitalization omitted)).

New York City residents must submit their applications in-person at One Police Plaza in Manhattan. An applicant must pay a fee of $431.50; must provide proof of age, citizenship, and residence; and must produce an original Social Security card. *Id.*, at 95–96, 98. A completed application must specify the particular handgun that the applicant wishes to possess and the address for which the license is sought. It must list all the applicant's residences and places of employment for the past five years. *Id.*, at 99–100, 104–105. An applicant must answer questions about past arrests, summonses, indictments, convictions, and civil orders, and must respond to probing questions about past drug use, subpoenas and testimony, unsuccessful applications for civil service positions, military service, mental illness, and physical conditions (such as "Epilepsy," "Diabetes," or "any Nervous Disorder") that could, in the judgment of the License Division, interfere with the use of a handgun. *Id.*, at 96–97, 101–102. The applicant must explain where and how he or she will safeguard the handgun when not in use, and furnish the name and address of a New York State resident who will take custody of the handgun in the event of the applicant's death or disability. *Id.*, at 104.

And these application requirements are only the beginning. The submission of an application triggers a " 'rigorous' " police investigation "into the applicant's mental health history, criminal history, [and] moral character." *Kachalsky* v. *County of Westchester*, 701 F. 3d 81, 87 (CA2 2012). A licensing officer is required by law to review mental health records, investigate the truthfulness of the statements in the application, and forward the applicant's fingerprints to the New York State Division of Criminal Justice Services and the Federal Bureau of Investigation to determine if the applicant has a criminal record. N. Y. Penal Law Ann.